

SENATE No. 388**The Commonwealth of Massachusetts**

PRESENTED BY:

Robyn K. Kennedy*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to fix the chapter 70 inflation adjustment.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>1/29/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/7/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>2/7/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/11/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>2/19/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/19/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>2/19/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>2/20/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/26/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/3/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>3/11/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>3/19/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>3/20/2025</i>
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>3/28/2025</i>
<i>John Barrett, III</i>	<i>1st Berkshire</i>	<i>4/7/2025</i>
<i>Adam Gómez</i>	<i>Hampden</i>	<i>4/17/2025</i>

<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>4/25/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>5/12/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>5/12/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>5/12/2025</i>
<i>William J. Driscoll, Jr.</i>	<i>Norfolk, Plymouth and Bristol</i>	<i>5/16/2025</i>

SENATE No. 388

By Ms. Kennedy, a petition (accompanied by bill, Senate, No. 388) of Robyn K. Kennedy, Vanna Howard, Jacob R. Oliveira, Mike Connolly and other members of the General Court for legislation to fix the chapter 70 inflation adjustment. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to fix the chapter 70 inflation adjustment.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of chapter 70 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out, in lines 46 through 57, the definition of
3 “Foundation allotments” and inserting in place thereof the following new definition:-

4 “Foundation allotments”, the sum of the foundation category costs for each district;
5 provided, however, that the sum in each foundation category shall be the product of enrollment
6 in each foundation enrollment category that is eligible for the respective foundation category and
7 the per-pupil rate assigned to each foundation category; provided further, that in each year the
8 per-pupil rate for each foundation category, except employee benefits and fixed charges, shall
9 not be less than the foundation per-pupil rate in section 3 of this chapter adjusted by the
10 foundation inflation index; and provided further, that in each year the rate for employee benefits
11 and fixed charges shall not be less than the prior year's rate adjusted by the foundation employee
12 benefits inflation rate.

13 SECTION 2. Said section 2 of said chapter 70, as so appearing, is hereby further
14 amended by striking out, in lines 93 through 96, the definition of “Foundation inflation index”
15 and inserting in place thereof the following new definition:-

16 “Foundation inflation index”, the ratio of the value of the implicit price deflator for state
17 and local government consumption expenditures and gross investment in the first quarter of the
18 prior fiscal year to the value of that same deflator in the first quarter of fiscal year two thousand
19 and nineteen; provided that the increase in the index over the prior fiscal year shall not exceed
20 four-and-one-half percent.